

Prasenjit Nandi vs Rumpi Dey on 14 August, 2023

Author: Sanjay Kumar Medhi

Bench: Sanjay Kumar Medhi

Page No.# 1/4

GAHC010171952023

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : CRP(IO)/249/2023

PRASENJIT NANDI
PRASENJIT NANDI,
S/O- LATE CHITTA RANJAN NANDI,
A PERMANENT RESIDENT OF ITACHALI,
TILAK DEKA ROAD, NAGAON , ASSAM, PIN-782001

VERSUS

RUMPI DEY
D/O- BIJOY BHUSHAN DEY, AGED 33 YRS,
PRESENT R/O VILLAGE NIJ LALUK,
P.O AND P.S- LALUK, DIST- NORTH LAKHIMPUR, PIN-784160

Advocate for the Petitioner : MR. S BANIK

Advocate for the Respondent :

BEFORE
HONOURABLE MR. JUSTICE SANJAY KUMAR MEDHI

ORDER

14.08.2023

1. Heard Shri S. Banik, learned counsel for the petitioner, who has filed this petition under Article 227 of the Constitution of India.

Page No.# 2/4

2. Under peculiar circumstances, the present petition has been filed against continuation of proceedings in the learned Family Court, Guwahati in F.C. (Civil) No. 216 of 2023.

3. The petitioner who is the husband had instituted F.C. (Civil) No. 212/2021 before the learned Family Court, Guwahati for restitution of conjugal rights.

4. With regard to the said proceedings, the respondent (wife) had filed a transfer petition being Transfer Petition (Civil) No. 15/2022 in this Court for transfer of the proceedings from Guwahati to Lakhimpur in which the present petitioner had appeared and contested. In the meantime, the respondent had also filed Misc Case No. 78/2021 under Section 125 Cr.P.C. for maintenance at Lakhimpur.

5. Shri Banik, the learned counsel for the petitioner has however submitted that in the transfer petition, this Court had directed the parties to sit for Mediation and in the said Mediation, the parties had come to an agreement that the marriage between the parties would be mutually dissolved with permanent alimony of Rs. 5 Lakhs. It is submitted that the entire amount of Rs. 5 Lakhs was paid whereafter a joint petitions under Section 13 B of the Hindu Marriage Act, 1955 has been filed on 17.02.2023 before the learned Family Court, Guwahati which has been registered as F.C. (Civil) No. 216 of 2023.

6. The basic grievance is with regard to the insistence of the learned Family Court to defer the proceedings by 6 months as required under Section 13 B of Page No.# 3/4 the Hindu Marriage Act, 1955.

7. Shri Banik, the learned counsel has submitted that the period prescribed by the statute is only to ensure that the consent given is free and a considered consent and the same persist and is consistent for the period of 6 months. However, the said provision of the statute has been interpreted by the Hon'ble Supreme Court in the case of Amardeep Singh vs. Harveen Kaur. reported in (2017) 8 SCC 749 which is also referred to in a subsequent judgment dated 11.12.2021 of the Hon'ble Supreme Court in Civil Appeal No 7650 of 2021 (Amit Kumar vs. Suman Beniwal).

8. It is submitted that because of the delay, the petitioner is required to pay an additional amount of Rs. 4000/- (Rupees Four Thousand) per date to facilitate appearance of the respondent at Guwahati which is wholly unnecessary as for all purposes the parties have consented to a dissolution of the merits and such report of the Mediation dated 07.11.2022 is also reflected in the order dated 14.12.2022 of this Court by which the Transfer Petition was closed on withdrawal.

9. Though this Court is of the opinion that a case for passing appropriate orders have been made out, in the fitness of things, such order is required to be passed in presence of both the parties.

10. Shri Banik, the learned counsel submits that the next date fixed before the learned Family Court, Guwahati is on 17.08.2023. He submits that the petitioner would be able to serve a copy of the petition along with information about the Page No.# 4/4 next date to the respondent so as to facilitate her to appear before this Court.

11. Liberty for serving notice of this case upon the respondent on the next date before the family court is granted.

12. Let this case be listed for motion on 22.08.2023.

13. The fact of serving notice to the respondent may be brought on record by way of an affidavit so as to enable this Court to pass appropriate orders on the next date fixed.

JUDGE Comparing Assistant